Job Aid: Jurisprudence Search Aid

Purpose

This search tool will provide you the ability to search across the Supreme Court of Canada, Federal Court of Appeals, Federal Court and Social Security Tribunal, for cases related to your inquiry. The tool is conversational in nature and will provide you results based on your questions and follow-ups. As with any Generative AI tool, there are certain nuances as to how to use the tool more effectively; some suggestions and recommendations will be included in this Job Aid at the end.

Steps to Use Jurisprudence Search Aid

1. Log In

- After login, you will see the main page, as shown above.

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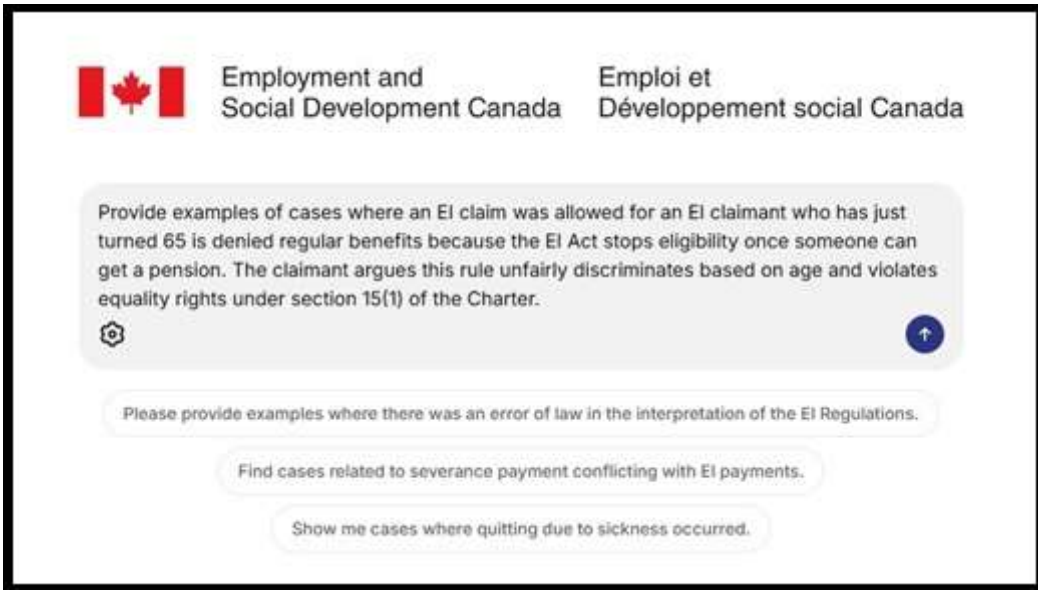
2. Make a query



- On the main page, you can enter a query into the text box, select one of the sample queries or load up a previous chat conversation located on the left
- Key sections:
  Search
  Example queries
  Chat History

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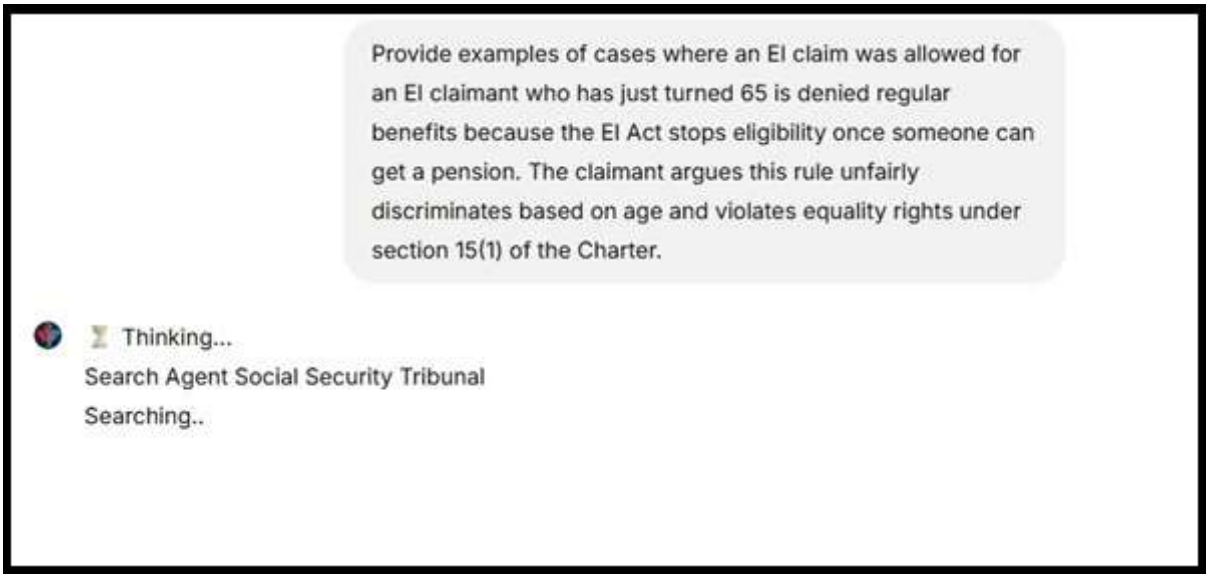
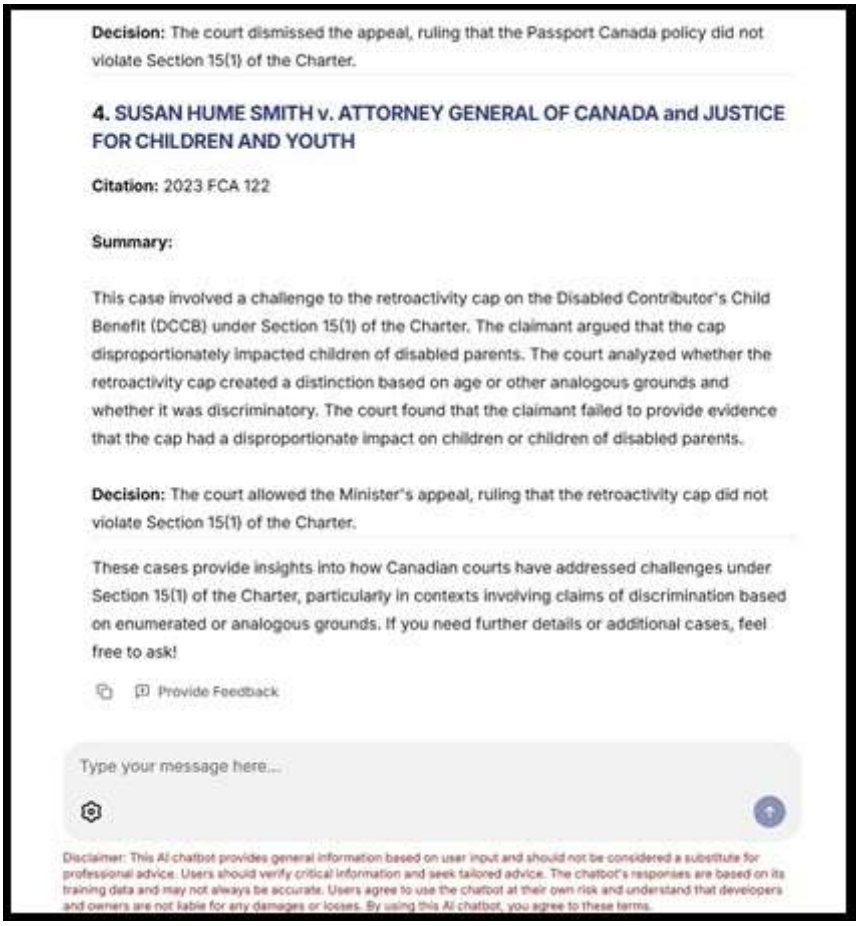
3. Perform Search



- After typing in your query into the search box, hit the Enter key or click on the Arrow inside the chat box.
- Your search query will be submitted to the tool and a description of the progress will be shown in the chat window, as per the screenshot above.



Decision: The court dismissed the appeal, ruling that the Passport Canada policy did not violate Section 15(1) of the Charter.

4. SUSAN HUME SMITH v. ATTORNEY GENERAL OF CANADA and JUSTICE FOR CHILDREN AND YOUTH

Citation: 2023 FCA 122

Summary:

This case involved a challenge to the retroactivity cap on the Disabled Contributor's Child Benefit (DCCB) under Section 15(1) of the Charter. The claimant argued that the cap disproportionately impacted children of disabled parents. The court analyzed whether the retroactivity cap created a distinction based on age or other analogous grounds and whether it was discriminatory. The court found that the claimant failed to provide evidence that the cap had a disproportionate impact on children or children of disabled parents.

Decision: The court allowed the Minister's appeal, ruling that the retroactivity cap did not violate Section 15(1) of the Charter.

These cases provide insights into how Canadian courts have addressed challenges under Section 15(1) of the Charter, particularly in contexts involving claims of discrimination based on enumerated or analogous grounds. If you need further details or additional cases, feel free to ask!

Provide Feedback

Type your message here...

Disclaimer: This AI chatbot provides general information based on user input and should not be considered a substitute for professional advice. Users should verify critical information and seek tailored advice. The chatbot's responses are based on its training data and may not always be accurate. Users agree to use the chatbot at their own risk and understand that developers and owners are not liable for any damages or losses. By using this AI chatbot, you agree to these terms.

- The results of the query will be shown in the chat window as shown above.
- You can switch languages in your conversation any time you would like. The language of the question or follow-up question will determine the language of the search result.

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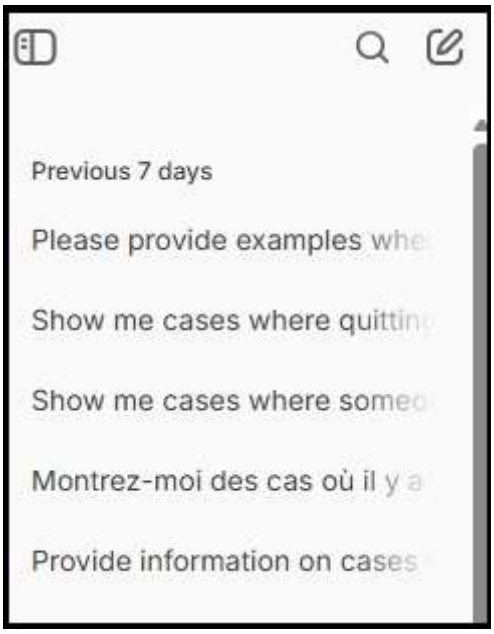
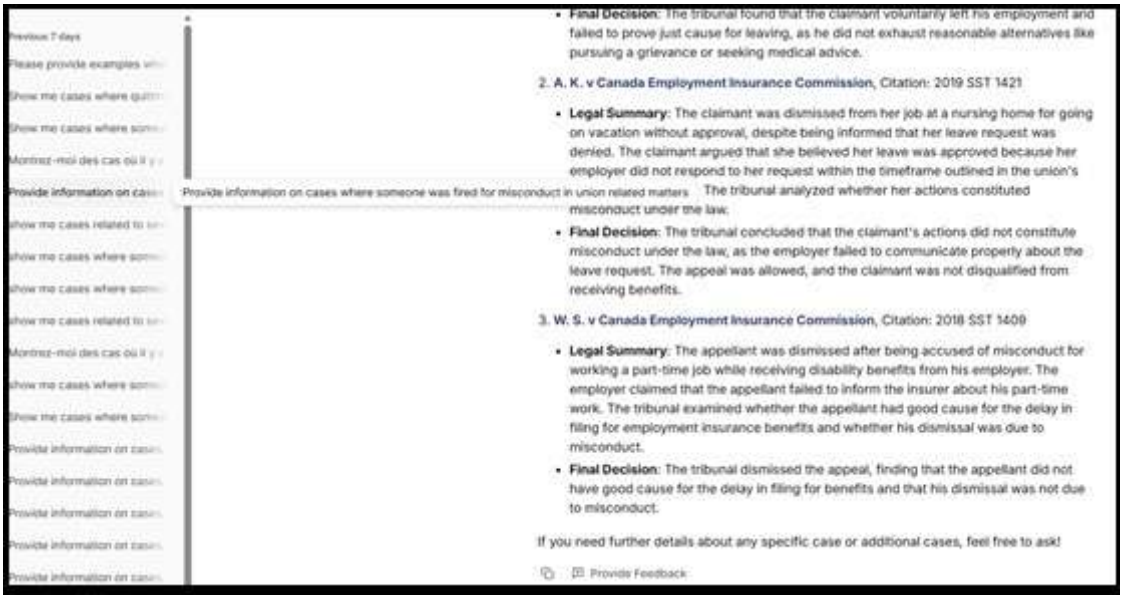
4. Load Chat History



- On the left side of the page, you can select a previous conversation (chat history).



- The previous conversation selected will load into the chat window and you can resume your conversation with the Search Aid tool.

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5. Language Toggle

- On the upper right of the page, you can select the language you would like the interface to display in (French or English). Please note that the chat window results will not switch

languages with this toggle.

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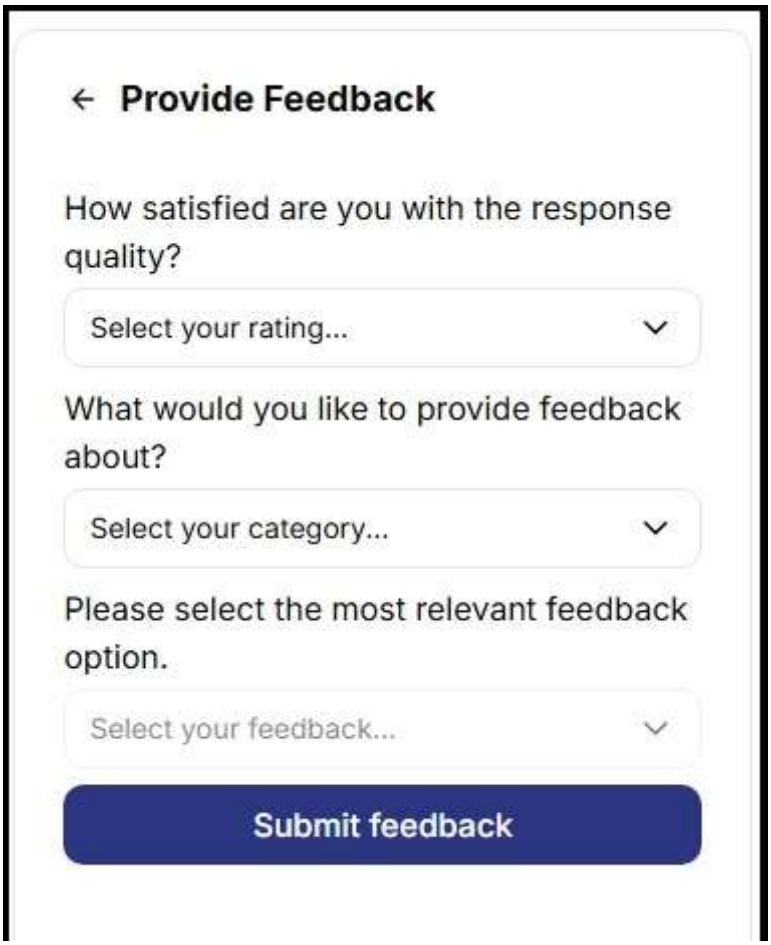
5. Feedback for Search Results



- After each search result, you will have the option to provide feedback, by selecting the "Provide Feedback" option at the bottom of the chat window.
- You can provide a rating from 1 (Very dissatisfied) to 5 (Very satisfied), as well selecting the category and feedback option afterwards. Click the Submit button to submit the feedback and return to the tool.

Tips & Best Practices

- When making a query, use positive language: "Please include only X types of cases", instead of negative language: "Do not include any Y type cases". Generative AI tools typically respond with more accuracy and expected behavior when using this principle.
- Aside from the name of a claimant from a previously decided court case, avoid the use of Personally Identifiable Information (PII) data (i.e. address, phone number) as these will be

automatically filtered out from the query.

- Please remember this is a search aid tool - it cannot provide a comprehensive analysis or other functions that require knowledge of the law. The tool will provide an error message for anything that is not a query against cases or analysis questions.
- If you do not get a search result that matches what you asked, please attempt the query again with reworded language. Try to phrase the repeated query more specifically for the search result you are looking for. Additionally, please provide feedback for inaccurate or invalid search results, as this information is valuable for updating and adjusting the search tool to improve with every version released.
- As this is a AI assisted search tool, please check all answers for validity and click on individual cases to be taken to their respective court documents to do further analysis, as search results may not be always accurate. This search tool should not be considered a substitute for professional legal advice.
- Due to limitations with the AI Service (Open AI) - a maximum of 3 cases can be retrieved from each court for a query.

- Please note that the search responses times may be a little slow during the initial roll-out. This response time will improve as the team is able to make adjustments and updates.

- During the pilot phase of this tool, there are limitations about the level of analysis and types of questions that can be asked. The following types of questions may trigger an error message stating that the question is out of bounds of scope of the tool. If answers are returned for these types of questions, please double check and validate the accuracy of the responses.

    - How to ...
    - What should ...
    - Tell me about X type of benefit ...
    - Any information specific to EI Act / Regulation
    - Can you explain Section 29 of the EI regulations...
    - Provide an overview of EI special benefits...
    - What happens if a claimant ....
    - Provide an analysis of ...
    - What if...
    - Based on the charter .....
- For the following error messages that display, the meanings of each are:
    - "The sources that you have selected do not correspond to the ones required to answer your query. Please adjust your sources selection or rephrase your query."

        - This error message occurs when the question does not match the courts that have been selected or the terminology needs to be rephrased.
    - "Your query falls outside the scope of this application. Please submit a question relevant to the Jurisprudence Search Aid for assistance"
        - When the question asked is outside of the bounds of scope of the tool (see above for the examples of types of questions).
    - "Sorry, something went wrong. Please try again later"
        - All other technical errors, including timeout errors or AI service related errors. Please re-try your question after a short period of time or adjust your question phrasing.

Support

- For any issues or help with the Jurisprudence Search Aid tool, please contact: EDSC.AC.JurisPrudence-CaseLaw.NHQ.ESDC@hrsdc-rhdcc.gc.ca